

HOUSE BILL 111

By Lamberth

AN ACT to amend Tennessee Code Annotated, Section
68-5-602, relative to maternal health screening.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 68-5-602(a), is amended by deleting the subsection and substituting:

(a) Every physician, surgeon, or other person permitted by law to attend a pregnant woman during gestation shall, in the case of each woman so attended, take or cause to be taken a sample of the blood of the woman at the time of first examination and visit or within ten (10) days after the first examination. If the first visit is at the time of delivery, or after delivery, then the standard serological test required by this subsection (a) must be performed at that time. The blood sample must be sent to a laboratory approved by the department for testing for syphilis infection, rubella immunity, hepatitis B surface antigen (HBsAg), and hepatitis C antibody (anti-HCV) with automatic reflex to HCV RNA if anti-HCV is reactive. In the same manner, a sample of blood must be taken and tested between the twenty-eighth and thirty-second week of gestation for syphilis for all pregnant women. In the same manner, a sample of blood must be taken and tested for syphilis for all pregnant women at the time of delivery. Additional testing for rubella immunity is not required in subsequent pregnancies once a positive result is verified or a documented history of vaccination against rubella is available. All positive tests for syphilis, hepatitis B, and hepatitis C must be reported to the local health department in accordance with this chapter, and regulations governing the control of communicable diseases in this state.

SECTION 2. Tennessee Code Annotated, Section 68-5-602(b), is amended by deleting the subsection and substituting:

(b) Every person attending a pregnant woman who is not permitted by law to take blood samples shall cause a sample of blood to be taken and tested by a health provider permitted by law to take the samples as required in subsection (a).

SECTION 3. This act takes effect on July 1, 2025, the public welfare requiring it.